



CHAPTER 60.

An Act to facilitate the provision in Liverpool of public elementary school accommodation for senior children.
[4th August 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of giving effect to the objects of certain proposals for the provision of new public elementary schools for senior children in the city of Liverpool, being proposals which were submitted to the local education authority of that city in accordance with, and within the time limited by, section eight of the Education Act, 1936, and towards the cost of carrying out which the authority might under that section have made grants, the authority may themselves provide schoolhouses and grant leases thereof to such persons interested in the submission of the original proposals as they think fit upon such terms and conditions as the Board of Education may approve :

Provision of senior non-provided schools.

26 Geo. 5. &
1 Edw. 8.
c. 41.

Provided that the yearly rent reserved by any such lease shall not be more than one-half or less than one-quarter of a sum equal to four per cent. of the cost incurred by the authority in providing the premises in question.

Elementary Schools (Liverpool) Act, 1939.

11 & 12
Geo. 5. c. 51.

(2) For the purpose of providing a schoolhouse under this section, the local education authority shall have all the same powers as they have under the Education Act, 1921, in relation to public elementary schools to be provided by them thereunder, and any preliminary notice required to be given under subsection (1) of section eighteen of that Act shall be given by the authority, but that notice shall state that the proposed schoolhouse is intended to be leased under this section to persons specified in the notice and the school carried on in that schoolhouse when so leased shall for the purposes of the Education Acts, 1921 to 1937, be deemed to be a school not provided by the authority.

(3) Subsections (1) and (3) of section nine of the Education Act, 1936 (which relate to the provisions which may be contained in an agreement made under section eight of that Act) shall apply in relation to a lease granted under this section as if it were an agreement made under the said section eight, and subsection (1) of section ten of the said Act (which contains provisions with respect to schools in respect of which grants are made under that Act) shall apply in relation to a school carried on in a schoolhouse leased under this section as if it were a school in respect of which a grant had been made by a local education authority under the said Act and had not been repaid.

Provision of
money by
Parliament.

2. Any sums by which any education grants payable under any Act are increased by reason of expenditure incurred under this Act by the local education authority on, or in connection with, the provision of schoolhouses shall be defrayed out of moneys provided by Parliament.

Short title
and con-
struction.

3. This Act may be cited as the Senior Public Elementary Schools (Liverpool) Act, 1939, and shall be construed as one with the Education Acts, 1921 to 1937.

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